

STATEMENT OF WORK

Green River Lake
544 Lake Road
Campbellsville, KY 42718-9805
Upgrade Flooring in Visitor Center & Project Office

General Requirements:

The scope of work includes removal and disposal of existing flooring coverings throughout the Visitor Center & Project Office. **Exhibit A contains the Visitor Center & Project Office building layout and measurements.** All provided measurements are approximate and the contractor shall be responsible for obtaining measurements. The contractor's work and responsibility shall include all planning, programming, administration, management, supervision, communications, and inspection necessary to assure that all work is conducted in accordance with the contract requirements and all applicable Federal, State, and Local laws and regulations. All work shall be performed in strict compliance with the attached specifications and all other terms and conditions incorporated herein.

Due to the nature of the office setting, flooring removal and installation will be coordinated with the Lake Manager to minimize the disruption of the office staff. The contractor shall be responsible for moving office furniture and equipment to facilitate the flooring installation. Loose materials, computers, printers, phones, and other technology equipment shall be the responsibility of the USACE employees to move.

BASE ITEM 01: Installation of Carpet Floor Covering

1. Contractor shall remove approximately 1,700 SQFT of all floor coverings to include all glues, tack strips, grout, mortar, etc. from the Visitor Center Display Area and Theater, with exception to the entry vestibules located on the east and west entrances as well as the bathroom area located near the lobby.
2. Contractor shall repair cracks, pits, and prepare the existing subfloor surfaces.
3. The contractor shall dispose of the removed floor coverings and debris from the Corps of Engineers property in accordance with the appropriate state and federal requirements.
4. Contractor shall install 1,700 SQFT of 24" x 24" carpet squares dark brown in color, in the Visitor Center Display Area and Theater. Contractor shall provide carpet glue / mastic that complies with the manufacturers specifications and install carpet squares per the manufacturer's recommendations. **Note: KTR shall provide samples of carpet type and colors to the Lake Manager for approval prior to purchasing.**
5. Carpet shall meet the following requirements:
 - a. Textured Loop Construction
 - b. Pile Density of 7945 with a Finish Pile Thickness of 0.09
 - c. Dye method of Solution Dyed
 - d. Woven Polypropylene Backing
 - e. Environmental Certification of Indoor Air Quality: GLP9716
 - f. Match close in color to sample in attachments
 - g. Encore® SD Nylon
 - h. Manufacturer Warranty detailed in Section 32 below

BASE ITEM 02: Installation of Vinyl Plank Flooring

1. Contractor shall remove approximately 2,000 SQFT of floor coverings from the following areas: (3) Offices, Copy Room, Server Room, and Conference Room to include all glues, tack strips, grout, mortar, etc.
2. Contractor shall repair cracks, pits, and prepare the existing subfloor surfaces.
3. The contractor shall dispose of the removed floor coverings and debris from the Corps of Engineers property in accordance with the appropriate state and federal requirements.
4. Contractor shall install approximately 2,000 SQFT of 7.25" x 48" Waterproof Vinyl Planking glue-down type, 5-millimeter thick, vinyl plank floor covering, caramel in color for the following areas: (3) Offices, Copy Room, Server Room, and Conference Room. Contractor shall install Vinyl Plank Flooring in accordance with the specifications below and the manufacturer's recommendations. **Note: KTR shall provide samples of Vinyl Plank and colors to the Lake Manager for approval prior to purchasing.**

BASE ITEM 03: Installation of Porcelain Tile Floor Covering

1. Contractor shall remove approximately 2,000 SQFT of floor coverings from the following areas: Lobby, Locker Room, Storage Room, Breakroom/Kitchen, and Hallway to include all glues, tack strips, grout, mortar, etc.
2. Contractor shall repair cracks, pits, and prepare the existing subfloor surfaces.
3. The contractor shall dispose of the removed floor coverings and debris from the Corps of Engineers property in accordance with the appropriate state and federal requirements.
4. Contractor shall install approximately 2,000 SQFT of 8" x 40" Wood-Textured Porcelain Tile, weathered oak wood in style and color for the following areas: Lobby, Locker Room, Storage Room, Breakroom/Kitchen, and Hallway. Porcelain tile shall meet the specifications detailed below. Floor tiles shall be set with 1/8" sanded grout joints, color of grout to be determined to match / compliment tile selection. Contractor shall install an uncoupling membrane, and metal trims and transitions where applicable.
5. Contractor shall install porcelain floor tiles in accordance with the manufacturer's recommendations. **Note: KTR shall provide samples of Tiles, Grout, transitions, and colors to the Lake Manager for approval prior to purchasing.**

OPTION ITEM 04: Removal of Existing Wood Paneling, Installing Drywall (Eastern Elevation)

Option items shall be exercised within 14 days of award.

1. Contractor shall remove existing wall covering wood paneling in the Eastern portion of the project office. The wall areas to be included shall be the Locker Room (480 sq ft), Conference Room (750 sq ft), & Break Room (550 sq ft).
2. Contractor shall install ½" drywall at all locations wood paneling is removed. Any damaged or missing insulation shall be replaced in-kind with new insulation by the contractor. Tape and finish drywall in accordance with ASTM C840. Provide joint, fastener depression, and corner treatment at all changes in plane. Tool joints as smoothly as possible to minimize sanding and dust. Contractor shall utilize dust control / management to minimize the disruption to project office employees.
3. Finish wall surfaces in accordance with GA 214 Level 5. Wall surfaces to receive eggshell finish paint. **Note: KTR shall provide samples of paint colors to the Lake Manager for approval prior to purchasing.**

4. Drywall Contractor shall install 4 1/4" traditional crown base at locations where new drywall and floor coverings have been installed.
5. Door Casing shall be replaced with like dimension and profile "finished in white trim paint" matching the crown base color.
6. Base Boards shall receive quarter round to hide imperfections in the floor coverings and base trim. At locations where metal window frames do not allow for installation of base molding, contractor shall install quarter round at floor to window frame transitions to hide imperfections in floor coverings and window frames. All trim, base boards, quarter round shall be finished in white trim paint.
7. Contractor is responsible for removing existing cabinets located in the break room to install drywall. Once drywall installation is complete contractor shall re-install cabinets. Any damage incurred during removal/installation shall be the contractor's responsibility to fix/replace.
8. The contractor shall dispose of the removed Wood Paneling and debris from the Corps of Engineers property in accordance with the appropriate state and federal requirements. Contractor shall install drywall in the offices listed above, application of finishing compound, and paint according to the manufacturer's recommendation.

OPTION ITEM 05: Removal of Existing Wood Paneling, Installing Drywall (Western Elevation)

Option items shall be exercised within 14 days of award.

1. Contractor shall remove existing wall covering wood paneling, handrails, and textured wallpaper in the Western portion of the project office. The wall areas to be included shall be the (3) Offices (530 sq ft, 450 sq ft, and 880 sq ft) and Central Hallway (1600 sq ft).
2. The Contractor shall install 1/2" drywall at all locations wood paneling is removed Any damaged or missing insulation shall be replaced in-kind with new insulation by the contractor. Tape and finish drywall in accordance with ASTM C840. Provide joint, fastener depression, and corner treatment at all changes in plane. Tool joints as smoothly as possible to minimize sanding and dust. Contractor shall utilize dust control / management to minimize the disruption to project office employees.
3. Finish wall surfaces in accordance with GA 214 Level 5. Wall surfaces to receive eggshell finish paint.
Paint colors to be approved by the Lake Manager prior to purchasing.
4. Drywall Contractor shall install 4 1/4" traditional crown base at locations where new drywall and floor coverings have been installed.
5. Door Casing shall be replaced with like dimension and profile "finished in white trim paint" matching the crown base color.
6. Base Boards shall receive quarter round to hide imperfections in the floor coverings and base trim. At locations where metal window frames do not allow for installation of base molding, contractor shall install quarter round at floor to window frame transitions to hide imperfections in floor coverings and window frames. All trim, base boards, quarter round to be finished in white trim paint.
7. Any damage incurred during removal/installation of furniture from the offices shall be the contractor's responsibility to fix/replace.
8. The contractor shall dispose of the removed Wood Paneling and debris from the Corps of Engineers property in accordance with the appropriate state and federal requirements. Contractor shall install drywall in the offices listed above, application of finishing compound, and paint in accordance with the manufacturer's recommendation.

RESPONSIBILITIES AND SITE CONDITIONS

1. **During duration of construction, contractor shall provide dust control measures including protective barriers of plastic or similar material to protect site personnel from dust and other airborne particles.**
2. Any trim or baseboards that are damaged by the removal or installation of floor coverings are to be replaced at the expense of the contractor.
3. Parking of vehicles and a designated laydown area is to be coordinated with the Lake Manager during pre-construction conference.
4. Existing break areas, offices, latrines, and showers are not available for contractor use. It is recommended that the contractor supply portable restrooms.
5. All deliveries shall be coordinated with the Lake Manager at least 48 hours in advance.
6. Contractor expected to keep work area clean and orderly. All waste materials shall be removed in accordance with federal, state, and local regulations.
7. Visitor center shall be cleared of all movable furniture and displays by USACE personnel prior to start of work.
8. All furniture in the theatre and project office shall be removed **by the contractor** in accordance with the attachments.
9. **USACE** personnel shall remove all loose equipment including sensitive equipment. Sensitive equipment such as servers shall be monitored by USACE personnel at all times during work in the areas they are accessible.
10. Phasing shall be required to allow for proper storage of furniture. It is requested that the office is done one side at a time to allow for furniture storage on the other side.
11. Phasing must be coordinated directly with the Lake Manager, Lead Ranger, and TPOC and approved at the pre-construction meeting.

SPECIFICATIONS

- 1.1. Carpeting: The publications listed below form a part of this specification to the extent referenced. The publications are referred to within the text by the basic designation only.

AATCC 16 (2010) Colorfastness to Light

AATCC 107 (2013) Colorfastness to Water

AATCC 134 (2016) Electrostatic propensity of Carpets

AATCC 174 (2016) Antimicrobial Activity Assessment of New Carpets

ASTM D297 (2019) Rubber Products – Chemical Analysis

ASTM D1335 (2018) Standard Test Method for Tuft Bind of Pile Yarn Floor Coverings

ASTM D1667 (2022) Standard Specification for Flexible Cellular Materials – Poly Foam

ASTM D2859 (2016) Standard Test Method for Ignition Characteristics of Finished Textile Floor Covering Materials

ASTM D3278 (2021) Standard Test Methods for Flash Point of Liquids by Small Scale Closed-Cup Apparatus

ASTM D3574 (2017) Standard Test Methods for Flexible Cellular Materials-Slab, bonded and Molded Urethane Foams

ASTM D3676 (2013) Rubber Cellular Cushion used for Carpet or Rug Underlay

ASTM D5848 (2020) Standard Test Method for Mass Per Unit Area of Pile Yarn Floor Coverings
 ASTM D6859 (2011) Standard Test Method for Pile Thickness of Finished Level Pile Yarn Floor Coverings
 ASTM D7330 (2015) Standard Test Method for Assessment of Surface appearance Change in Pile Floor Coverings Using Standard Reference Scales
 ASTM E648 (2019) Standard Test Method for Critical Radiant Flux of Floor-Covering Systems Using a Radiant Heat Energy Source
 CRI 104 (2015) Carpet Installation Standard for Commercial Carpet
 CRI 105 (2015) Carpet Installation Standard for Residential Carpet
 CRI GLP QM (2017) Green Label Plus Quality Manual
 CRI Test Method 103 (2015) Standard Test Method for the Evaluation of Texture Appearance Retention of Carpet Standards Program.
 GS-36 (2013) Adhesives or Commercial Use
 ISO 2551 (2020) Textile Floor Coverings and Textile Floor Coverings in Tile Form – Determination of Dimensional Changes due to the Effects of Varied Water and Heat Conditions and Distortion Out of Plane
 SCAQMD Rule 1168 (2017) Adhesive and Sealant Applications
 16 CFR 1630 Standard for the Surface Flammability of Carpets and Rugs
 UL 2818 (2022) Greenguard Certification Program for Chemical Emissions for Building Materials, Finishes and Furnishings

Carpeting: Provide carpet conforming to the specifications specified in the line item.

Cleaning and Protection: Submit one copy of Carpet manufacturer's maintenance instructions describing recommended type of cleaning equipment and material, spotting and cleaning methods, and cleaning cycles. After installation, flooring shall be free of debris, scrapes, foreign matter, and ready for use before final acceptance.

Maintenance: Submit one copy of the Manufacturer's Maintenance Instructions including recommended cleaning products and methods. Provide extra material from same dye lot consisting of uncut carpet tiles for future maintenance. Provide a minimum of 3% of total square yards of each carpet type, pattern and color.

- 1.2. Vinyl Plank Flooring:** The publications listed below form a part of this specification to the extent referenced. The publications are referred to within the text by the basic designation only.

ASTM F710 (2022) Standard Practice for Preparing Concrete Floors to Receive Resilient Flooring
 ASTM F1066 (2014) Standard Specification for Vinyl Composition Floor Tile
 ASTM F1303 (2021) Standard Specification for Sheet Vinyl Floor Covering with Backing
 ASTM F1700 (2020) Standard Specification for Solid Vinyl Floor Tile
 ASTM F1869 (2023) Standard Test Method for Measuring Moisture Vapor Emission Rate of Concrete Subfloor using Anhydrous Calcium Chloride
 ASTM F2170 (2019) Standard Test method for Determining Relative Humidity in Concrete Floor Slabs Using in situ Probes
 ATFS Standards (2015) American Tree Farm System Standards of Sustainability
 GS-36 (2013) Adhesives for Commercial Use

Vinyl Plank Flooring: Provide Vinyl Plank Flooring conforming to ASTM F1700 Class III printed film with following manufacturer specifications:

- Minimum Wear Layer Thickness of 0.5 mm / 20 mil and a minimum overall thickness of 5 mm.

- Luxury Vinyl Tile Construction
- Provide planking with a factory protective finish that enhances cleanability and durability
 - Enhanced Urethane finish
- Installation methods include Brick Ashlar, Vertical Ashlar, and Herringbone
- Glue Down Installation Required by Manufacturer
- Manufacturer Warranty detailed in Section 32 below

Installation: Do not install building construction materials that show visual evidence of biological growth. Install vinyl plank flooring system and accessories in accordance with the manufacturer's printed installation instructions. Prepare and apply adhesives in accordance with manufacturer's printed directions. Provide square, symmetrical, tight, and even flooring lines and joints. Keep each floor in true, level plane, except where slope is indicated. Cut flooring to fit around all permanent fixtures, built in furniture and cabinets, pipes, and outlets. Lay out sheets to minimize waste. Cut, fit, and scribe flooring to walls and partitions after field flooring has been applied. Cut seams by overlapping or under scribing as recommended by the manufacturer. Finish joints flush, free from voids, recess, and raised areas.

Cleaning: Immediately upon completion of installation of flooring in a room or an area, dry and clean the flooring and adjacent surfaces to remove all surplus adhesive. Clean flooring as recommended in accordance with manufacturer's printed instructions and within the recommended time frame before final acceptance.

Maintenance: Submit one copy of the Manufacturer's Maintenance Instructions including recommended cleaning products and methods. Note: to ensure matching flooring that may become damaged and require spot replacement, a supply of extra flooring of same types, colors and lot is required at a minimum of 3% of total square footage.

- 1.3. Tile Floor Covering:** The publications listed below form a part of this specification to the extent referenced. The publications are referred to within the text by the basic designation only.

ASTM C97 / C97M (2015) Absorption and Bulk Specific Gravity of Dimension Stone

ASTM C109 / C109M (2021) Standard Test Method for Compressive Strength of Hydraulic Cement Mortars

ASTM D2047 (2017) Standard Test Method for Static Coefficient of Friction of Polish-Coated Floor Surfaces as Measured by the James Machine

ASTM E84 (2023) Standard Test Method for Surface Burning Characteristics of Building Materials

SCAQMD Rule 1168 (2017) Adhesive and Sealant Applications

Standard Products: Provide materials which are the standard products of a manufacturer regularly engaged in the manufacture of the material and that essentially duplicate products that have been in satisfactory use at least 2 years prior to the bid opening.

Porcelain Tile: Provide porcelain tile of the indicated colors with a wood plank appearance. Provide tile conforming to the following manufacturer specifications:

- Tile size shall be nominal 8 inches by 40 inches with a thickness of 5/16".
- Provide tiles with a glazed matte finish with low sheen and high variation in tone and shade.
- Grout joint shall be 1/8"
- Waterproof, stainproof, scratch resistant, and chemical resistant
- Manufacturer Warranty detailed in Section 32 below

Grouting: Install grout in accordance with ANSI A108.10 correlating to grout type chosen and manufacturer's recommendations.

Cleaning: Upon Completion of the installation and after adhesive has cured, thoroughly clean flooring in accordance with the manufacturer's recommendations.

Maintenance: Submit one copy of the Manufacturer's Maintenance Instructions including recommended cleaning products and methods. Note: to ensure matching flooring that may become damaged and require spot replacement, a supply of extra flooring of same types, colors and dye lot is required at a minimum of 3% of total square footage.

Protection: Cover and protect the porcelain tile work from damage until completion of the work of all other trades. Remove and replace defects which develop, such as loose, broken, or curled tiles.

GREEN RIVER LAKE FLOORING INSTALLATION

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SPECIFICATIONS/DESCRIPTION

1. Project Information.

The contractor shall provide all materials, equipment, labor, to remove and dispose of existing floor coverings and install new carpet, vinyl plank flooring, and porcelain floor tile in the specified areas herein at Green River Lake located at 544 Lake Road Campbellsville, KY, 42718.

2. Performance Work Statement.

The contractor's work and responsibility shall include all planning, programming, administration, management, supervision, communications, and inspection necessary to assure that all work is conducted in accordance with the contract requirements and all applicable Federal, State and Local laws and regulations. The contractor shall properly dispose of all material removed at a site licensed facility able to receive/recycle this debris and in accordance with Federal, State and Local Regulations. All work shall be performed in strict compliance with the attached specifications and all other terms and conditions incorporated herein. The Prime contractor shall be responsible for ensuring all subcontractors comply with the provisions of this contract. All materials shall be installed in accordance with the manufacturer's recommendations and or applicable building standards unless specifically stated otherwise in the specifications.

3. Technical Point of Contact (TPOC):

TPOC: Josee Scott
USACE Project Engineer
Office: (502) 315-6725
Email: josee.k.scott@usace.army.mil

Lake Manager: Larry Lemmon
Green River Lake
544 Lake Road Campbellsville, KY, 42718
Office: (270) 465-4463
Email: larry.m.lemmon@usace.army.mil

4. Pre-Work Conference:

The contractor shall be required to attend a pre-work conference prior to beginning work during which the Contractor's plan of work, safety procedures, start date and other items in this contract shall be discussed.

5. Working Hours.

- a. Normal working hours, except as otherwise specified herein, shall be Monday through Friday, 7:00 a.m. to 4:00 p.m. CT. Work inside Government buildings or other secured areas shall be performed during the above referenced work hours. Work that interferes with other ongoing functions at the project shall be scheduled around normal working hours, as specified by the Lake Manager or Lead Ranger.

Holiday Work. The eleven (11) Federal holidays observed are:

New Year's Day (January 1st)
Martin Luther King Day (3rd Monday in January)
President's Day (3rd Monday in February)
Memorial Day (Last Monday in May)
Juneteenth Day (June 19)
Independence Day (July 4th)
Labor Day (1st Monday in September)
Columbus Day (2nd Monday in October)

Veterans Day (November 11th)
Thanksgiving Day (4th Thursday in November)
Christmas Day (December 25th)

When one of the above designated holidays falls on a Sunday, the following Monday is observed as a legal holiday. When a legal holiday falls on a Saturday, the preceding Friday is observed as a holiday. Work shall be scheduled around the above listed Federal holidays except as specified herein or as approved by the TPOC.

b. Inclement Weather Work.

The Contractor shall maintain the schedule of services regardless of inclement weather. Exceptions may be approved by the TPOC when severe conditions make it impractical or dangerous to perform the work.

6. Contract Start and Completion Dates.

Work under this contract shall begin within 14 calendar days of the Notice to Proceed (NTP) and shall conclude 120 Calendar Days after the NTP.

7. Contractor Submittals.

Unless otherwise specified, the Contractor shall submit the following information to the TPOC prior to the pre-work conference for this contract:

- a. Quality Control Plan. A suggested outline for the Contractor's Quality Control Plan.
- b. Contractor Quality Control Inspector. List of Quality Control Inspectors.
- c. Contractor Representatives. List of names of Contractor Representatives.
- d. Accident Prevention Plan (APP). See EM 385-1-1 for the mandatory ENG Form 6293 (Accident Prevention Plan Worksheet).
- e. Emergency Contacts. A prioritized list, including phone numbers, of those persons (normally Contractor Representatives) to call in case of emergencies.
- f. Operators. A list of names of qualified equipment/vehicle operators, including experience, training and qualification to operate specific equipment.
- g. Certificate of Insurance.
- h. Performance Bond. (where applicable)
- i. Security Requirements.
- j. Materials, Data Sheets, Operation and Maintenance Manuals

8. Permits and Licenses.

The Contractor shall obtain, at own expense, any required licenses, permits or certifications necessary to perform the specified services. Required licenses, permits and certifications shall be kept current during the period the work is performed. The Contractor is also responsible for any and all costs associated with the training of Contractor personnel to acquire and maintain valid licenses, permits or certifications necessary to perform the contract services specified herein. The Contractor, Contractor personnel and any persons acting on behalf of the Contractor shall comply with all applicable Federal, State and local laws and regulations; including any subsequent changes to these laws and regulations.

Minimum Personnel and Training Requirements. The Contractor shall provide an adequate number of fully trained and qualified personnel to perform the work specified herein. Contractor personnel shall be properly trained to perform their assigned work in a safe and effective manner. Training shall include, but is not limited to instruction on the proper and safe use and operation of Contractor equipment and any Contractor provided tools, supplies and materials required to perform the specified services. Only properly trained and qualified employees shall be used in the performance of services specified herein. The Contractor shall also assume responsibility for training or Orienting Contractor personnel to perform the services specified in the contract. In the event the Contracting Officer or his/her Authorized Representative determines that the Contractor does not have a qualified employee performing the specified work, the Contractor shall be required to provide qualified personnel, or subcontract the work to a person or persons who are trained and qualified to perform the work. The Contractor acknowledges that the employment of undocumented migrant workers to perform services under this contract shall not be permitted.

9. Identification of Contract Employees and Vehicles.

All Contractor employees shall be in good appearance while performing services. Employees must wear long pants, shirt with no vulgar or obscene graphics with at least sleeves equivalent of a t-shirt, and durable work type shoes. Vehicles and any motorized equipment utilized for transportation shall be in good operating condition with no display of obscene or vulgar material such as stickers, flags, or etc. Vehicles shall be maintained in accordance with federal, state, and local laws.

10. Safety Requirements.

- a. **General.** Performance of all services shall assure complete safety to public visitors, Contractor employees, and all other persons in the area. The Contractor shall comply with any pertinent requirements contained in the Corps of Engineers Safety Manual (EM 385-1-1), current at the time of award and any subsequent revisions to that document. Furthermore, the Contractor shall comply with pertinent occupational safety and health standards for general industry (29 CFR Part 1910) as required by the Occupational Safety and Health Administration (OSHA). If the Contractor fails or refuses to promptly comply with safety and security requirements as specified herein, the TPOC or any other project employee may stop all or part of the work until satisfactory corrective action has been taken. No part of the time lost due to any such work stoppage shall be made subject to any claims for extension of time or for excess costs or damages sustained by the Contractor. Also, the Contractor shall not be paid for work not performed as a result of the stop order.
- b. The Contractor shall comply with the Occupational Safety and Health Act (OSHA), the Corps of Engineers Manual, EM 385-1-1, https://www.publications.usace.army.mil/Portals/76/Publications/EngineerManuals/EM_385-1-1.pdf or latest version and as otherwise stated herein. Special attention shall be given to the requirements for safety meetings.
The Contractor shall inform the TPOC a minimum of 7 calendar days prior to a Contractor monthly safety meeting, to permit a Government representative to attend.
- c. **Accident Prevention Plan (APP).** The Contractor shall prepare an Accident Prevention Plan to assure that requirements of the safety program are provided as specified. This plan must be accepted by the Contracting Officer prior to commencement of any work. One copy of the Accident Prevention Plan shall be provided to the Contracting Officer and the TPOC one week prior to the pre-work conference. The Accident Prevention Plan must be in the outline and form prescribed in Appendix A of EM385-1-1.
- d. **Activity Hazard Analysis (AHA).** The Contractor shall use Activity Hazard Analyses (AHA's) as one of many tools to insure safe performance of work. It is the Contractor's responsibility to prepare the AHA. Sample AHA's may be available at the project office for review and use by the Contractor to assist in the development of site specific Activity Hazard Analyses prior to the Contractor performing the job. The Contractor is encouraged to revise or add to these sample AHA's as necessary to address changing conditions. Prior to performing jobs with inherent hazards, the Contractor shall review, at a "Tool Box" safety meeting, the approved AHA's with those employees who shall perform that work each time the work is ordered. The Government may request advanced notification of the time and date of the above AHA "Tool Box" safety meeting for Contractor employees so that the Government may attend such reviews.

The Government shall require the Contractor to prepare an AHA for any jobs for which an adequate AHA does not already exist. A copy of this AHA shall be submitted to the TPOC and must be accepted before the Contractor starts the job. This copy of the AHA shall become the property of the Government. Guidance is included, which shall be used by the Contractor as a guide for the preparation of required AHA's.

A copy of the approved AHA's shall be available at all times to workers at each associated job site and a copy shall be provided to the Government.

- e. **Public Safety.** The Contractor shall ensure that reasonable precautions are taken to protect the public at all times where work is being performed. The Contractor shall immediately report to the TPOC any potential hazards found by his employees on the project. The Accident Prevention Plan shall include procedures to be taken to provide for public safety. Additionally, the Contractor shall not allow any persons, except

employees, into work areas that are not otherwise open to the public; nor shall the Contractor transport in Contractor work vehicles any persons, except employees, during times the Contractor is on the project performing work under a contract.

- f. Personal Protective Apparel and Equipment. Protective apparel and equipment, as identified in the AHA, shall be provided to eliminate or minimize hazards to personnel. As a minimum, each employee shall wear a short-sleeved shirt, long trousers, and appropriate footwear during all contract work. Face shields, spectacles with side-shields, or goggles, and hearing protection shall be worn by employees when required by safety manual. Fire extinguisher(s) and first aid kit(s) meeting the Safety Manual standards shall also be provided and easily accessible to all employees.
- g. Contractor Employees Certified in First Aid & CPR. The Contractor shall schedule employees so the appropriate numbers of certified personnel are on duty to administer First Aid and CPR as required by the Safety Manual.
Copies of their certification will be provided in accordance with regulations. Two people per crew will be trained in First Aid and CPR. Individuals working alone will be trained in First Aid.
- h. Hazard Communication Program. The Contractor will be responsible for implementing a hazard communication program for Contractor employees, as required by the Safety Manual. The Contractor will provide Material Safety Data Sheets (MSDS) and/or Safety Data Sheets (SDS) for review by the TPOC prior to use of any hazardous substance on the project and provide a plan for the proper handling, transportation, storage and usage of hazardous substances on the project.

11. Required Security Training and Planning.

- A. General security requirements and guidance: The security requirements described below apply to all contract personnel (including employees of the prime Contractor ("Contractor") and all subcontractor employees) supporting the performance requirements of this contract. The Contractor is responsible for compliance with these security requirements. Questions regarding security matters shall be addressed to the designated Government representative (e.g., Contracting Officer Representative (COR), Requiring Activity (RA) representative, or Contracting Officer (if a COR or other RA representative is not appointed)). Contract personnel are critical to the overall security and safety of US Army Corps of Engineers (USACE) installations, facilities and activities, and security awareness training contributes to those efforts. The Department of Defense (DoD) and Army security training requirements specified below, if applicable, are performance requirements; all applicable contract personnel shall complete initial training within 30 days of contract award or the date new contract personnel begin performance on the contract. Within five business days from the completion of training, the Contractor shall provide written documentation (e.g., email or memorandum) to the Government representative. The documentation shall include the names of contract personnel trained and which training they completed; the Contractor shall maintain training records as part of their contract files and be prepared to provide copies of training certificates to the Government representative. Contractor personnel and vehicles are subject to search when entering federal installations. Additionally, all contract personnel shall comply with Force Protection Condition (FPCON) measures, Random Antiterrorism Measures (commonly referred to as "RAMs"), and Health Protection Condition (HPCON) measures. The Contractor is responsible for meeting performance requirements during elevated FPCON and/or HPCON levels in accordance with applicable RA plans and procedures --this includes identifying mission essential and non-mission essential personnel. In addition to the changes otherwise authorized by the changes clause of this contract, should the FPCON or HPCON levels at any individual facility or installation change, the Government may implement security changes that affect contract personnel. The Contractor shall ensure all contract personnel are aware of their security responsibilities, including any site-specific requirements identified in local policies or procedures.
- B. Physical security and access control requirements: All contract personnel requiring physical access to a federal installation or facility shall comply with the access control procedures of that location. Contract personnel requiring unescorted access to meet contract performance requirements on a DoD installation in the US shall be vetted by the installation/facility Provost Marshal/Directorate of Emergency Services/Security Office using the National Crime Information Center-Interstate Identification Index (commonly referred to as "NCIC-III") and Terrorist Screening Database (commonly referred to as

“TSDB”). Contract personnel shall comply with all personal identity verification requirements specified in installation/facility policies and procedures. Contract personnel who do not meet requirements for unescorted access to USACE facilities shall coordinate escorted access with the Government representative, as needed. Contract personnel who receive keys, access cards, or lock combinations that provide access to government-owned property shall comply with key and lock control procedures of the RA.

- C. Suspicious Activity Reporting training (e.g., iWATCH, CorpsWatch, or See Something, Say Something): All contract personnel shall receive initial and annual refresher training from the RA representative on the local suspicious activity reporting program. This locally developed training provides contract personnel with general information on suspicious behavior, and guidance on reporting suspicious activity to the project manager, security representative or law enforcement entity.
- D. Pre-screen candidates using E-Verify Program: Contractors shall comply with the requirements set forth in FAR clause 52.222-54 Employment Eligibility Verification and FAR Subpart 22.18 in using the E-Verify Program at (<https://www.e-verify.gov/>) (website subject to change) to meet the contract employment eligibility requirements. Contractors are encouraged to cooperate with Federal and State agencies responsible for enforcing labor requirements to include eligibility for employment under United States immigration laws in accordance with FAR 22.102-1(i). An initial list of verified/eligible candidates shall be provided to the COR no later than three business days after the initial contract award. When contracts are with individuals, the individuals shall be required to complete a Form I-9, Employment Eligibility Verification, and submit it to the Contracting Officer to become part of the official contract file.
- E. Supplemental Security Requirements:
All Contractors and subcontractor employee(s) working on this contract who require access to any Louisville District Lake Projects and Lock and Dam Projects shall receive authorization to be on site at these facilities based upon a favorable background investigation in accordance with “Homeland Security Presidential Directive 12: Policy for a Common Identification Standard for Federal Employees and Contractors” (HSPD 12). The Louisville District Security Management Office shall submit contractor(s) personal information to complete the basic background investigation in order to make a recommendation to the Contracting Office of an employee’s suitability for work on Government property. The Procuring Contracting Officer (PCO) has the right to deny any contractor or subcontractor employee from working on the contract based upon the results of the background investigation provided by the Louisville District Security Office. The Government, Contractor, and subcontractors shall not permit any employee(s) access to drawings, blueprints, records, photos, sites, or projects until the Louisville District Security Management Office has completed an Operations Security (OPSEC) review of such items and determined they can be released.

FOR ALL LOUISVILLE DISTRICT CONTRACTS:

Contractors shall submit a complete investigation packet for each contractor and subcontractor employee to the Louisville District Security Management office within 10 working days after award of any contract, or prior to the individual being permitted access to Louisville District facilities.

The Contractor must also provide the following: (1) Name of the Contract Specialist with whom he/she is working, (2) Project Name, (3) Contract Number (4) Task Order Number when applicable, and (5) US Citizens Security Access Form or Pre-Bid/Site Visit Form; each employee working on site must have a background investigation form submitted directly to the Louisville District Security Office.

The Contractor must provide a full legal name, complete SSN#, Date of Birth, Place of Birth (City and State) and Driver’s license number if available. It is the Contractor’s responsibility to ensure the above information is accurate and legible, otherwise delays may occur.

Contractors shall have background checks completed for their employees annually in the case of Contracts with an initial period of performance (POP) greater than 1 year and those Contracts with Options or Modifications Which Extend the POP beyond 1 year. For instance, if the employee was cleared in May of

2022, they shall be cleared again in May of 2023. It is the Contractor's responsibility to ensure that each employee's security is up to date. Failure to comply may lead to possible removal from the project/jobsite.

The Contractor must ensure if new employees are brought in to work on an existing Contract with the U.S. Army Corps of Engineers (USACE), they must process the employee through the Louisville District USACE Security Office for background purposes.

FOR CONTRACTORS REQUIRING DOD COMMON ACCESS CARDS (CAC)

The documents listed below are required:

SF 85, Questionnaire for Non-Sensitive Positions (see <http://www.opm.gov/forms/> to print form).

Fingerprints are captured electronically at the closest Army Recruiting Station to the contractor's home of record or at the USACE, Louisville District Security Office.

Contractor shall report any changes in personnel, or at any time conditions change at least 5 working days prior to individual(s) need to have access to the site. The Contractor shall provide the same information as listed above for all new employees.

Following submission of paperwork, the Louisville District Security Office shall conduct an initial criminal check based upon the information provided. If there are no issues, the Louisville District Security Office shall make recommendations to the PCO or their Designated Representative. The Louisville District Security Office cannot give approval due to unfavorable report(s). The Louisville District Security Office shall coordinate with Office of Counsel and shall jointly make recommendations to the PCO and/or the Designated Representative should a background investigation come back with derogatory information. The PCO shall make the determination whether to allow the Contractor personnel to work on the site based on Security and Office of Counsel recommendations, and the PCO shall advise the Contractor of the decision.

FOREIGN NATIONALS

The Contractor shall provide the package listed above, as well as additional materials noted below for all Foreign Nationals. The Contractor is to expect additional time in the approval process for all Foreign Nationals due to the level of review and elevation of the review to Headquarters staff to complete. All Foreign Nationals must comply with the following paragraph:

In accordance with Engineering Regulation 380-1-18, "Technology Transfer, Disclosure of Information and Contacts with Foreign Representatives" dated 1 August 1996, Section 4, all foreign nationals who work on Corps of Engineers' contracts shall be approved by the Headquarters US Army Corps of Engineers (HQ USACE) Foreign Disclosure Officer before beginning work on this contract; this regulation includes subcontractor employees. The Contractor shall submit to the Security Management Office, the names of all foreign nationals proposed for performance under this contract, along with documentation to verify legal admittance into the United States. Such documentation shall include at least one of the following: a U.S. passport, Certificate of U.S. Citizenship (INS Form N-560 or N-561), Certificate of Naturalization (INS Form N-550 or N-570), Alien Registration Card with photograph (INS Form I-151 or I-551), Employment Authorization Card (INS Form I-688A), etc.

In order to assure forms are properly completed, and to minimize time delays, the Contractor is encouraged to work closely with the Louisville District Security Office. The Government shall return for correction incomplete forms, illegible forms, etc. which shall delay the contractor / subcontractor from beginning work.

Security requirements are subject to change in accordance with HSPD-12, Office of Personnel Management, regulation or policy changes, etc. The Government shall add any changes to security requirements by modification to the contract.

The Contractor shall contact the Louisville District Security Office by phone, letter, or email at the following

numbers/addresses:

CELRL-SM
600 Martin Luther King Jr. Pl
Louisville, KY 40202

Primary Email: DLL-CELRL-Security-SM@usace.army.mil

Alternate (if no response in 72 hours):

James R. Milner, phone (502) 315-6916; James.R.Milner@usace.army.mil Jason Almodovar, phone (502) 315-6754; Jason.Almodovar@usace.army.mil

12. Accident Reporting.

The Contractor is responsible for reporting all accidents to the Lock Master immediately. Prompt action shall be taken to ensure immediate and appropriate medical treatment. The Contractor shall maintain an accurate record of any accidents in the manner and on the forms prescribed by the Lock Master. For property damage accidents of \$2,000 or more, the Contractor shall complete and submit to the Lock Master a copy of ENG Form 3394. The Contractor shall maintain an OSHA 300 Log of On – The – Job injuries and first aid treatments.

The Contractor shall also provide a monthly record of all exposure and accident experience incidental to the performance of services under the contract. This reporting requirement includes exposure and accident experience of both the Prime Contractor and any subcontractor(s). A Monthly Record of Work-Related Injuries/Illnesses & Exposure form shall be available from the Lock Master. The Monthly Record of Work-Related Injuries/Illnesses & Exposure report shall be provided to the Lock Master by the 5th working day of the month for the previous month.

13. Damage Reports.

All instances where Government materials, supplies, property, and/or equipment are damaged shall be reported immediately to the Lock Master. When the damage was caused by contract employees, a written report of the incident and extent of such damage shall be submitted to the Lock Master, within 2 work days (less weekends and holidays) of occurrence. For property damage accidents of \$2,000 or more the Contractor shall complete and submit to the Lock Master a copy of ENG 3394.

14. Contractor Employees' Conduct and Competency.

All contract employees shall conduct themselves in a proper and courteous manner at all times. Since the majority of work is performed in the presence of the general public, the conduct of all employees is critical and shall be closely monitored. Contract employees shall comply with all provisions of Title 36, Chapter III, Part 327, CFR and obey all posted signs and regulations in the performance of the work under this contract. Being under the influence of or consuming alcoholic beverages or controlled substances by the Contractor or employees while on duty is prohibited.

- a. Employee Dismissal. The Contractor expressly agrees to dismiss any employee or subcontractor employee whose continued employment is deemed by the Lock Master to be inconsistent with the best interests of the public or the U.S. Army Corps of Engineers. The KO or the Lock Master may require the Contractor to immediately remove from the work site any employee or subcontractor who is incompetent, endangers persons or property, or whose physical or mental condition would impair their ability to satisfactorily perform the work. Notification to the Contractor shall be promptly made in writing if time and circumstances permit. Otherwise, notification shall be verbal and confirmed in writing as soon as possible. No removal shall reduce the Contractor's obligation to perform all work required under this contract nor be the basis for time extension. Immediate replacement of the employee shall be made.

15. Damage or Loss of Contractor's Supplies and Property.

The Contractor is responsible for taking the action necessary to protect Contractor supplies, materials and equipment, and the personal property of Contractor employees from loss, damage or theft. The Government assumes no responsibility for theft, damage, etc., of the above. The Government is not responsible for

providing storage areas or facilities for the storage of Contractor supplies, materials and equipment. With prior approval, the Lock Master may provide a location for the temporary storage of large equipment to prevent the transportation of such equipment to/from the work site while a particular service is being performed. However, the Government assumes no liability for the loss or destruction of Contractor equipment while it is stored on Government property.

16. Supervision.

The TPOCs will be Larry Lemmon and Josee Scott. The Contractor is responsible for providing on-site supervision and quality control inspections of work performed under the contract. The level of supervision and inspections will be sufficient to assure that services are performed in accordance with contractual requirements and all applicable Federal, state and local laws and regulations. The Contractor or a Contractor Representative will personally supervise the work, or be readily available by phone or other means of communication to respond to any contract issue that may arise when work is in progress. The Contractor Representative(s) will conduct overall management coordination and be the central point of contact with the Government for performance of all work under the contract.

Contractor Representative will have full authority to contractually commit the Contractor for prompt action on all matters pertaining to administration of this contract, and will be the on-site Contractor employee who is responsible for safety.

In addition to Contractor Representative(s), the Contractor will also appoint Quality Control Inspectors (QCI) who will perform the Contractor's Quality Control Program. QCI's will be responsible for implementing the Contractor's Accident Prevention Plan. All QCI'S will have the authority to determine for the Contractor when work is ready for Government inspection and to make decisions for the Contractor on re-performance when necessary. A QCI will be appointed for each work crew. For work performed outside normal working hours, a Contractor Representative or QCI will be present at the work site.

The TPOC and Government Inspectors will deal directly with the QCI's or Contractor Representatives, for normal day-to-day administration of the contract provisions.

The names and telephone numbers of all individuals authorized to act on behalf of the Contractor as Contractor Representatives will be submitted in writing to the TPOC before work is performed.

The Contractor will maintain copies of contract work requirements, specifications, Activity Hazard Analysis, etc., at each work site which relate to each person's work responsibilities and will review them to insure employee's comprehension of a job prior to initiating work.

17. Environmental Program.

The Contractor will comply with Federal, State, and local laws, regulations and standards regarding environmental protection. All environmental protection matters will be coordinated with the TPOC. Any of the facilities operated by the Contractor may be inspected by the TPOC, or other Federal, State and local officials without advance notice. Access for inspection will be granted upon request.

Citations against Government facilities operated by the Contractor for non-compliance with environmental standards are a matter for resolution between the Government and the issuing office.

The Contractor will conduct all operations and maintenance activities in a manner to prevent contamination of Government land and property. The Contractor will ensure all lubricants, petroleum products, paints, cleaning materials, or any other hazardous substances are not spilled, leaked or disposed of on Government property and are disposed of in accordance with environmental regulations. If spills or contamination occur, the Contractor will be responsible for cleanup and any associated costs in accordance with Federal, State and Local Law. Such spills will be reported to the TPOC immediately.

18. Contract Discrepancy Report (CDR).

A CDR is a formal document used by the Government to process defects in services. As initially issued to the Contractor, the CDR describes the discrepancy or problem. The CDR will be discussed with the Contractor or his representative when it is issued. The Contractor will provide his written response on

the CDR form within 24 hours of issuance. The Contractor's response must:

Identify the cause and corrective action taken, and Identify Contractor action to prevent recurrence.

Upon finalization of the CDR, the Contractor and the TPOC must sign the form. The Contractor will be given a copy of the completed form. Should the Contractor not concur with any decision, etc., the Contractor may so state, in writing, and request a final decision by the Contracting Officer. The Contracting Officer monitors all CDR's issued, and CDR's are the principle evidence used by the Contracting Officer in determining Government contract actions such as termination or decision not to exercise options.

19. Meetings.

The Contractor is required to attend a pre-work meeting to be scheduled by the TPOC. The Contractor or his authorized representative will report each Month with the schedule and location determined by the TPOC to discuss contract work items. Specific topics of discussion at the Monthly meetings may include issuing inspections, quality control, and upcoming work. If a CDR is issued, mutual effort will be made to resolve any and all problems identified to preclude their recurrence. The TPOC may alter this reporting schedule, or change the reporting method, time, or place if mutually agreeable between the TPOC and the Contractor. A tour of the work site will be conducted following the discussions. It is recommended that the Contractor's on-site representative or superintendent also attend this meeting. During the pre-work conference, the Contractor will also provide any required submittals not previously submitted.

20. Quality Control.

The Contractor will have a Quality Control program to assure the requirements of the contract are provided as specified. The primary purpose of Quality Control is to identify and correct deficiencies in the quality of services performed before the level of performance is unacceptable.

The program will include, but not be limited to the following:

- a. An inspection system covering all the services stated in the contract specifications.
- b. A method of identifying and correcting deficiencies in the quality of services performed before the level of performance is unacceptable.
- c. A file of all inspections conducted by the Contractor and the corrective actions taken. These files will be made available for inspection upon request by the TPOC.
- d. A method of insuring that employees have full knowledge of work assignments and that appropriate technical expertise is utilized with each work assignment.
- e. A method of coordinating each work crew's activities with the TPOC and/or inspector.

The Contractor may use any or all portions of this plan to prepare a plan of his own. A signed plan, including Contractor specific information, will be provided to the Contracting Officer and the TPOC, and accepted, prior to the Pre-Work Conference. If changes to this program occur, updated copies will be provided to the Contracting Officer and TPOC.

Failure to provide appropriate Quality Control may result in issuance of a CDR, and/or termination of the contract.

21. Quality Assurance.

The Government will monitor the Contractor's performance in each functional area under this contract and reserves the rights to use whatever additional surveillance procedures are deemed appropriate. The Government will keep a record of all complaints received by the public concerning Contractor performance. Upon receipt of a written complaint by the public, the Government will attempt to verify the complaint and furnish the Contractor a copy of the findings. Should the Government verification reveal a nonperformance by the Contractor, a CDR may be issued.

A Government employee will not be considered an Inspector unless he identifies himself as such to the Contractor, the Contractor Representative, or Quality Control Inspector. No Inspector is authorized to change any provision of the specifications without written authorization of the Contracting Officer nor will the presence or absence of an inspector relieve the Contractor from any requirements of the Contract.

22. Deficiencies.

If the Contractor fails to perform, or if performance in any area is judged unsatisfactory by the TPOC, the Government will take corrective action. If any of the services do not conform to contract requirements, the Government may require the Contractor to perform the services again in conformity with contract requirements, at no cost to the Government.

23. Interruptions to Systems.

Contractor will coordinate with TPOC so that the contractors work will not interrupt the projects mission. Any authorized interruptions will be kept to an absolute minimum, and all repairs or replacements of equipment or components will be accomplished in an expeditious and efficient manner.

24. Government Furnished Materials and Equipment.

Utilities: The Government will furnish available utilities to perform the specified work. The Contractor will make a dedicated effort to conserve utilities and will comply with all Government regulations regarding energy conservation.

Forms: All Department of Defense forms, required by the Government to be used under this contract, will be provided by the Government during the contract period. The Government reserves the right to modify or supersede these forms during the contract period.

Control: The Contractor will provide control to ensure Government furnished equipment, property, or items are utilized only for contract purposes. The Contractor will not be provided with keys to the Control Tower, storage buildings or storage compounds. Any work to be performed within these facilities must be performed during regular working hours when Government employees are available to unlock these facilities for the Contractor.

Safety Manual. Prospective contractors may review a copy of the Safety and Health Requirements Manual EM 385-1-1 at the Project Office. The Contractor can find a copy of Safety Manual EM 385-1-1 online at: https://www.publications.usace.army.mil/Portals/76/Publications/EngineerManuals/EM_385-1-1.pdf

25. Contractor Furnished Items.

General: The contractor will furnish all personnel, equipment, fuel, tools, supplies and materials necessary. The contractor's work and responsibility will include all planning, programming, administration, management, supervision, communications and inspection necessary to assure that all work is conducted in accordance with the contract requirements and all applicable Federal, State and Local laws and regulations.

Equipment: The Government requires, that the Contractor provide adequate equipment to perform the work required within the specified time period. Also, all equipment used by the Contractor must meet safety requirements outlined in EM 385-1-1.

Contractor Equipment and Supply Inspection. The apparent Contractor will make available for inspection all service equipment, tools, and samples of supplies he proposes to use for work under this contract, along with proof of ownership or lease agreement.

26. Safeguarding Government Property.

The Contractor will cooperate with Government personnel in safeguarding Government property. The Contractor will be responsible for promptly reporting all acts of vandalism, larceny, or pilferage to Government property, and malfunctioning Government equipment to the TPOC. The Contractor will establish security procedures and safeguards that are compatible with the Government's existing procedures, to protect all equipment, materials, supplies, tools, and other resources. The Contractor will cooperate with, and provide any assistance necessary to, the Government during any audits, usage checks

of expendable property, and inventories of nonexpendable property under control of the Contractor. Any item of value found on the work sites will be placed into the custody of the TPOC for return to the owner, if ownership can be established. The Contractor will inform the TPOC of any information he or his employees receive about lost and/or found articles from the public.

27. Minimum Manpower Requirements.

The Contractor will provide an adequate number of fully qualified personnel to perform the work specified herein. Personnel required to handle emergency situations will be available on call, 24 hours per day, 7 days per week. At least 50 percent of the cost of contract performance incurred for personnel will be expended for employees of the primary contractor.

Veterans Employment Emphasis for U.S. Army Corps of Engineers Contracts

In addition to complying with the requirements outlined in FAR Part 22.13, FAR Provision 52.222-38, FAR Clause 52.222-35, FAR Clause 52.222-37, DFARS 222.13 and Department of Labor regulations, U.S. Army Corps of Engineers (USACE) contractors and subcontractors at all tiers are encouraged to promote the training and employment of U.S. veterans while performing under a USACE contract. While no set-aside, evaluation preference, or incentive applies to the solicitation or performance under the resultant contract, USACE contractors are encouraged to seek out highly qualified veterans to perform services under this contract. The following resources are available to assist USACE contractors in their outreach efforts:

- U.S. Department of Labor Veterans' Employment and Training Service (VETS):
<https://www.dol.gov/vets/>
- Federal Veteran Employment Information: <https://www.fedshirevets.gov/>
- Veterans Opportunity to Work (VOW) Program: <https://www.benefits.va.gov/vow/>
- U.S. Army Warrior Transition Command Employment Index:
<https://wct.army.mil/modules/employers/index.html>
- Hiring Our Heroes: <https://www.uschamberfoundation.org/hiring-our-heroes>

28. Minimum Personnel Qualifications.

Employees, technical personnel, and consultants will have the education, experience, or knowledge, as evidenced by license, certificate, or diploma, etc., to provide a comprehensive understanding of the systems and components. All employees will be subject to such Government or other applicable regulations that are applicable during the time spent on Government property. If the TPOC decides the Contractor employee performing the specified work is unqualified, the Contractor will immediately provide qualified personnel to accomplish the work.

29. Cooperation with other Contractors, Lessees, and Volunteers.

The Contractor will fully cooperate with such other Contractors, lessees, volunteers and Government employees. The Contractor will not commit or permit any act which will interfere with the performance of work by another Contractor, volunteer, lessee, or Government employee. The TPOC can alter the work schedules of the other Contractor, lessee, Government employees, volunteer, or the Contractor to avoid possible conflicts. Any such change (or failure to make such a change) by the TPOC will not be the basis for a claim by the Contractor.

30. Reports.

The Contractor shall, in an accurate and timely manner, prepare all reports, forms, permits etc., as required in this contract. A partial list of these reports, forms, permits, etc., follows:

Supplies Furnished and Used
Contractor Portion of Any CDR
Quality Control Inspection
Checklists Worksheet
(ENG Form 5007-R)
Vehicle Operational Record Form (CEORH Form 2813 Test)

Activity Hazard Analysis (AHA)
Required OPSEC Training

The Contractor shall report ALL contractor labor hours (including subcontractor labor hours) required for performance of services provided under this contract for US Army Corps of Engineers, Louisville District (UIC W07202) via a secure data collection site. The Contractor is required to completely fill in all required data fields using the following web address: <https://www.sam.gov/>

Reporting inputs will be for the labor executed during the period of performance during each Government fiscal year (FY), which runs October 1 through September 30. While inputs may be reported any time during the FY, all data shall be reported no later than October 31 of each calendar year, beginning with 2021. Contractors may direct questions to the help desk at help desk at: <https://www.sam.gov/>

31. Applicable Publications.

Performance of all services will assure complete safety to public visitors, Government employees, contractor employees, and all other persons in the area. The contractor will comply with any pertinent requirements contained in the Corps of Engineers Safety Manual (EM 385-1-1), https://www.publications.usace.army.mil/Portals/76/Publications/EngineerManuals/EM_385-1-1.pdf current at the time of award.

The Contractor will perform technical work in accordance with applicable publications. They include but are not limited to:

MANUFACTURER'S RECOMMENDATIONS:

- Operating Manuals
- Repair Manuals
- Installation Manuals
- Maintenance Manuals

INDUSTRIAL STANDARDS AND CODES (Latest Editions):

- Unified Facilities Criteria
- Unified Facilities Guide Specifications Section 26 56 13.00 40
- Underwriter's Laboratories, Inc.
- National Electrical Code
- National Warm Air & Air Conditioning Association
- National Association of Fan Manufacturers
- National Fire Protection Association
- American Society of Heating, Air Conditioning & Refrigeration Institute
- Sheet Metal Manufacturers
- Air Moving and Conditioning Association
- American Welding Society
- American National Standards Institute
- American Concrete Institute
- Portland Concrete Association
- Asphalt Institute
- American Institute of Steel Construction
- National Association of Architectural

- Metal
- Manufacturers Architectural Aluminum Manufacturers Association
- The Aluminum Association
- American Society for Testing and Materials
- Flat Glass Marketing Association
- American Association of Nurserymen, Inc.
- OSHA Safety Standards
- Uniform Plumbing Code
- International Plumbing Cod

32. Warranty:

The contractor warrants that material and workmanship performed under this contract is free of defects. Materials and workmanship for work performed by the contractor or supplier is under warranty for a period of 1 year from the date the Government takes possession.

Any equipment, supply, or material that has a manufacture warranty will be provided to the TPOC before or upon completion date.

Carpet: Provide manufacturer's standard performance guarantees or warranties including:

- Standard Back 10 Year Wear Warranty
- Lifetime Tuft Bind and Delamination

Porcelain: Provide manufacturer's standard performance guarantees or warranties including:

- 1-Year Limited Product Warranty

Laminate: Provide manufacturer's standard performance guarantees or warranties including:

- 10 Year Light Commercial Warranty

33. Wage Rates:

Department of Labor wage rates apply to this work and are included. The contractor is required to provide payroll documents for all work performed under this contract.

34. Definitions.

As used throughout this description/specification, the following terms will have the meaning set forth below:

Completion Date. All work must be completed by the completion date.

Contractor. The term Contractor refers to the prime Contractor, subcontractors, and all Contractor employee and personnel. The prime contractor will be responsible for ensuring all subcontractors comply with the provisions of this contract.

Contractor Quality Control Inspector (QCI). Person designated by the Contractor to perform the Contractor's Quality Control program. A QCI will be responsible for implementing the Contractor Accident Prevention Plan, and will have the authority to determine for the Contractor if work is ready for government inspection and make decisions for the Contractor on re-performance.

Contractor Representative (CR). Individual(s) selected to represent the interests of the Contractor with regards to all matters and activities involving this contract, and will be the onsite Contractor employee who is responsible for safety.

Contracting Officer (KO). A person with the authority to enter into, administer, and/or terminate contracts for the Government, and make related determinations and findings. The term includes certain authorized representatives of the Contracting Officer.

Technical Point of contact (TPOC). Person designated as the authorized representative of the Contracting Officer.

EM 385-1-1. Corps of Engineers Safety and Health Requirements Manual, located on the web at https://www.publications.usace.army.mil/Portals/76/Publications/EngineerManuals/EM_385-1-1.pdf or latest version. Click on Organization, then Safety and Occupational Health, then Publications.

Inspector. Individual designated by the TPOC to perform Quality Assurance.

Policing. The picking up of trash, debris, ashes, garbage, and miscellaneous waste, and disposing of the same in accordance with contract specifications.

Quality Assurance. A method used by the Government to provide a measure of control over the quality of services provided by the Contractor.

Quality Control. A method used by the Contractor to control the quality of services he/she provides for the Government.

Lock Master. A uniformed individual designated responsibility for overseeing the general operation, and administration of the project. i.e. Lock Master, Maintenance Leader.

Trash. A variety of unsalvageable waste material such as metal, glass, rags, tin cans, rubbish, plastic bottles, paper, wrappings, containers, cartons, and similar material.

35. Index of Exhibits:

<u>Exhibits</u>	<u>Description</u>
Exhibit A	Site Map and Layout for Green River Lake
Exhibit B	Miscellaneous Sample Forms
Exhibit C	Quality Control Plan Sample